



File No: EXP202210068

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against AXA GLOBAL DIRECT SEGUROS Y REASEGUROS S.A.U. (DIRECT SEGUROS) (hereinafter, the respondent) without their request receiving the legally established response.

The complainant states that they requested access to their personal data subject to processing from the respondent and received a response from the respondent raising doubts regarding their identity. The respondent required, in accordance with the provisions of section six of Article 12 of the GDPR, that the complainant provide the additional information necessary to confirm their identity (submission of a copy of their ID), without it being recorded that the required correction had been made.

The complainant filed a complaint with this Agency, considering that their right had not been adequately addressed, resulting in the inadmissibility of the complaint.

Namely:

“...once the reasons presented by the respondent, which are in the file, have been analyzed, in view of the actions taken, it is considered that the complainant's request has been addressed in accordance with personal data protection regulations, and it is not necessary to urge the adoption of additional measures as the requested right has been attended to, therefore the filing of the submitted complaint is appropriate...”

SECOND: The complainant, in total disagreement with the resolution that dismissed their complaint, submits a motion for reconsideration which, once analyzed, is resolved favorably and gives rise to the current complaint.

In the appeal, it is estimated:

“...Regarding these allegations, it should be noted that the respondent claimed that “at no time has the Complainant been denied the exercise of the right of access, but rather, precisely, in order to protect the confidentiality of the data entrusted to my client, they were required to provide the necessary information to prove ownership of the personal data subject to the exercise of the right. In fact, once their identity has been verified, the requested right has been attended to.” However, the appellant indicates that there are more data that have not been included in the access response, as evidenced by emails sent to this by the respondent itself, including data such as vehicle registration date, marital status, and profession, among others. It also points out that, in the very response to the right of access received, which is attached to the appeal, there is a generic reference to the categories of data held by the respondent, such as “Data about the vehicle subject to the insurance” and “Data about the driving license.” However, despite enumerating them and acknowledging that they have them, they do not send the appellant their personal data of the types they enumerate, without justifying their omission. Therefore, although they have been informed of the categories of data they hold, in accordance with Article 15.1.b) of the GDPR, the copy of the data held has been omitted in accordance with Article 15.3 of the GDPR beyond the basic identifying data. Therefore, in this case, along with the motion for reconsideration, new relevant documentation has been provided for the purposes raised, and the appeal filed should be upheld...”

THIRD: Following the events, the original complaint submitted by the complainant, the motion for reconsideration presented, and the favorable resolution of that motion are forwarded to the respondent, so that, within fifteen working days, they may formulate any allegations they deem appropriate.

The respondent has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In the event that they have designated a...

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Data protection officer, Article 39 of the GDPR assigns to this role the function of cooperating with said authority.

It is not deemed appropriate to clarify administrative responsibilities within the framework of a sanctioning procedure, whose exceptional nature implies that, whenever possible, preference should be given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that the present procedure duly restores the guarantees and rights of the complainant.

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, the provisions expressed in Recitals 59 and following of the GDPR are taken into account.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if the data has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect the data of third parties.

V

Conclusion

During the processing of this procedure, the entity being complained about, after the transfer made by this Agency with the original complaint, the appeal for reconsideration submitted by the complainant, and with the favorable resolution of said appeal, has not responded to this Agency and, most importantly, has not demonstrated having addressed the request made by the complainant by sending the required response to their request.

The resolution of the appeal for reconsideration already pointed out the deficiencies that had been detected and which considered the right of access to be incomplete. The entity being complained about could have rectified these deficiencies and demonstrated that they have been addressed, but there is no record throughout this procedure that the right has been fully addressed, which is why the complaint is upheld.

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Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR and Article 5.1.c) of the GDPR have been infringed, and to urge AXA GLOBAL DIRECT SEGUROS Y REASEGUROS S.A.U. (DIRECT SEGUROS) with NIF A81357246, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as

a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to AXA GLOBAL DIRECT SEGUROS Y REASEGUROS S.A.U. (DIRECT SEGUROS).

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-140623

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